
Terms and Conditions of Sale and Website Use

For Legendary Everyday

Effective date: [insert date before publication]. These Terms and Conditions govern the use of the Legendary Everyday website and the sale of roasted coffee and related goods to retail consumers and wholesale business customers. They are written for use by a Romanian coffee roastery selling online, and they should be reviewed by qualified Romanian counsel before publication so that the final version includes the company's exact corporate details, tax information, operational practices, and any sector-specific compliance wording.

Company details to complete before publication: registered office in Romania, registration number, VAT number, contact email, contact telephone number, and any warehouse / return address used for customer support.

1. Definitions

- "Company", "we", "us" or "our" means Legendary Everyday, the Romanian seller operating the website.
- "Website" means the online store, including all pages, product listings, account areas, checkout pages and related content.
- "Consumer" means a natural person acting for purposes outside their trade, business, craft or profession.
- "Wholesale Customer" means a business customer, reseller, distributor, hospitality customer or other customer purchasing for commercial purposes.
- "Products" means roasted coffee, green coffee (if offered), accessories and any other items listed on the Website.
- "Order" means an offer submitted by you through the Website to purchase Products from us.

2. Acceptance of These Terms

- By using the Website, creating an account, ticking the acceptance box during registration, or placing an Order, you confirm that you have read and accepted these Terms and Conditions.
- If you are placing an Order on behalf of a company or other legal entity, you confirm that you have authority to bind that entity to these Terms.
- If you do not agree with these Terms, do not use the Website and do not place an Order.

3. Website Use and Accounts

- You must provide accurate, complete and current information when creating an account or submitting an Order.
- You are responsible for maintaining the confidentiality of your login credentials and for all activity carried out through your account.
- We may suspend or close an account that contains false information, is used unlawfully, is used to interfere with the Website, or is used in breach of these Terms.
- Wholesale accounts are subject to approval by the Company. We may request additional business information before approval and may reclassify, suspend or revoke wholesale access at our reasonable discretion.

4. Product Information

- We aim to describe Products accurately, including origin, process, variety, roast profile and tasting notes where applicable. However, coffee is a natural agricultural product and reasonable variations may occur between lots, harvests and batches.

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- Images are illustrative. Packaging, labels and presentation may differ from images shown on the Website, provided the Product remains materially consistent with its description.
 - Any brew advice, tasting notes or freshness guidance is informational only and does not form a guarantee of individual taste preference.

5. Pricing, Taxes and Wholesale Pricing

- All prices displayed on the Website must clearly indicate whether they are retail prices or wholesale prices. Wholesale pricing is a separate commercial pricing tier and is not a promotional discount unless expressly stated otherwise.
- Retail pricing applies to visitors, consumers and customers without an approved wholesale account. Wholesale pricing applies only to approved wholesale accounts while logged in.
- Unless stated otherwise, prices are shown in EUR. Any applicable VAT, shipping charges, customs charges, banking fees, import duties or local taxes will be shown at checkout or remain payable by the customer where legally required.
- We may update prices, shipping thresholds, shipping zones, and minimum order requirements at any time before you place an Order. The price charged will be the price shown at checkout when the Order is submitted.

6. Orders and Contract Formation

- Product listings are invitations to treat and do not guarantee availability.
- Your Order becomes binding when you click the final order confirmation button at checkout. We will send an acknowledgement email after submission. The sales contract is formed only when we expressly accept the Order or dispatch the Products, whichever occurs first.
- We may refuse, cancel, or limit an Order for legitimate reasons, including stock error, payment failure, suspected fraud, export restrictions, pricing error, or suspected resale abuse.

7. Payment

- We accept the payment methods displayed at checkout. Payment must be authorized and successfully captured before dispatch unless we have agreed separate credit terms in writing for a Wholesale Customer.
- If a payment processor, bank or card issuer refuses payment, the Order may be delayed or cancelled.
- You authorize us and our payment providers to carry out fraud prevention and identity verification checks to the extent permitted by law.

8. Shipping, Delivery and Transfer of Risk

- We ship to the destinations listed on the Website. Shipping options, estimated lead times, free-shipping thresholds and carrier availability may vary by destination, order value, account type and product type.
- Delivery dates are estimates only unless expressly agreed in writing. We are not liable for delays caused by carriers, customs, force majeure events, inaccurate address data, or causes outside our reasonable control.
- For Consumers, risk transfers when the Products are delivered to you or to a person identified by you, other than the carrier. For Wholesale Customers and other business customers, risk transfers on delivery to the carrier unless mandatory law requires otherwise.
- Title to the Products passes only after full payment has been received.

9. Inspection, Returns and Right of Withdrawal for Consumers

- If you are a Consumer and you purchase through a distance contract, you generally have the legal right to withdraw from the purchase within 14 days from the day you or your nominated recipient receive the goods, without giving a reason, subject to any lawful exceptions.

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- To exercise withdrawal, you must send us an unequivocal statement before the 14-day period expires. You may use the model withdrawal form attached to these Terms, but it is not mandatory.
 - If you validly withdraw, we will reimburse the purchase price and the standard outbound delivery cost required by law, using the same payment method used for the Order, unless another lawful method is agreed.
 - Unless we agree otherwise, you must return the goods without undue delay and no later than 14 days after notifying us of withdrawal. You bear the direct cost of return unless mandatory law provides otherwise.
 - You are responsible for any diminished value resulting from handling the goods beyond what is necessary to establish their nature, characteristics and functioning.
 - To the extent permitted by applicable law, the right of withdrawal does not apply to goods that are made to customer specifications, goods liable to deteriorate rapidly, or sealed goods that are not suitable for return for health-protection or hygiene reasons once unsealed after delivery.

10. Returns and Claims for Wholesale Customers

- Wholesale sales are business-to-business transactions. Unless otherwise agreed in writing, Wholesale Customers do not benefit from any discretionary return right and may return Products only where required by law or where the Company expressly approves a return in writing.
- A Wholesale Customer must inspect Products promptly on delivery and notify the Company in writing of any visible damage, shortage or non-conformity without undue delay, and in any event within 48 hours for transit damage and within 5 business days for other obvious issues.
- Failure to notify us within the applicable period may be treated as acceptance of the Products, without prejudice to any non-excludable rights.

11. Quality, Freshness and Legal Guarantee

- We roast coffee for freshness, but coffee quality changes naturally over time. Best-before dates, storage instructions and brewing recommendations should be followed carefully.
- For Consumers, statutory rights concerning non-conforming goods remain fully applicable. Nothing in these Terms limits any non-waivable rights provided by Romanian law or applicable EU law, including rights relating to conformity of goods.
- If a Product is defective, damaged on arrival, or materially non-conforming, contact us promptly with your order number, a description of the issue, and supporting photographs where relevant. We may offer repair, replacement, price reduction or refund where required by law or reasonably appropriate.

12. Intellectual Property

- All website content, including text, graphics, logos, product descriptions, photographs and layout elements, is owned by or licensed to the Company and is protected by applicable intellectual property laws.
- You may not copy, scrape, reproduce, publish, distribute or commercially exploit any part of the Website without our prior written consent, except to the extent strictly necessary for placing an Order.

13. Prohibited Conduct

- You must not use the Website for any unlawful purpose, to attempt unauthorized access, to interfere with website performance, to submit false reviews, to manipulate pricing, or to place speculative or abusive orders.
- We may cancel Orders, suspend accounts and take appropriate legal steps if prohibited conduct is detected.

14. Limitation of Liability

- Nothing in these Terms excludes or limits liability where exclusion is unlawful, including liability for fraud, wilful misconduct, death or personal injury caused by negligence, or any mandatory consumer right.

- Subject to the above, and to the maximum extent permitted by law, the Company shall not be liable for indirect, incidental, special or consequential loss, loss of profit, loss of revenue, loss of business opportunity, loss of goodwill, or business interruption.

- For Wholesale Customers only, and to the extent permitted by law, the Company's aggregate liability arising out of or in connection with any Order shall not exceed the amount paid by the customer for the specific Products giving rise to the claim.

15. Force Majeure

- We are not liable for failure or delay caused by events beyond our reasonable control, including natural disaster, fire, flood, war, strike, pandemic, supply-chain disruption, customs action, carrier failure, cyberattack, utility outage or governmental action.

- If a force majeure event continues for an extended period, we may cancel affected Orders and refund sums paid for undelivered Products.

16. Data Protection

- We process personal data in accordance with our Privacy Policy and applicable data protection law, including the GDPR where applicable.

- By creating an account or placing an Order, you acknowledge that your personal data may be processed for account administration, payment processing, fraud prevention, shipping, customer service and legal compliance.

17. Governing Law and Dispute Resolution

- These Terms and any non-contractual obligations arising out of or in connection with them are governed by Romanian law.

- If you are a Consumer residing in the European Union, you also benefit from any mandatory consumer protections applicable in your country of residence that cannot be derogated from by contract.

- For business customers, the courts having jurisdiction over the Company's registered office in Romania shall have exclusive jurisdiction, unless we choose to bring proceedings in another competent court.

- Before starting formal proceedings, the parties should first try in good faith to resolve the issue through customer support and written escalation.

18. Changes to These Terms

- We may update these Terms from time to time to reflect legal, operational or commercial changes. The version published on the Website at the time of your Order will apply to that Order.

- For material changes affecting account use, we may provide additional notice through the Website or by email.

19. Contact

- Customer support and legal notices should be directed to: [insert support email], [insert legal notice email if different], [insert phone number], and [insert registered office / correspondence address in Romania].

Annex 1 - Model Withdrawal Form (Consumers Only)

Complete and send this form only if you wish to withdraw from a distance contract as a Consumer. You may instead send any other clear statement that you wish to withdraw.

To:	[Legendary Everyday - insert legal entity name, registered address, and returns email]
I / We hereby give notice that I / we withdraw from my / our contract of sale of the following goods:	
Ordered on / received on:	
Consumer name(s):	
Consumer address:	
Order number:	
Reason for return (optional):	
Signature (only if sent on paper):	
Date:	

Annex 2 - Practical Publication Checklist

- Insert the exact legal entity name, trade registry number, VAT number, registered office and contact channels.
- Add the final Privacy Policy link, Returns Policy link, Shipping Policy link and cookie notice link used on the Website.
- Confirm actual shipping zones, delivery carriers, free-shipping thresholds, and wholesale approval workflow.
- Check whether any product category requires a narrower return exception or additional food-law wording.
- Have Romanian legal counsel review the final website wording before publication.

Legal references used as drafting anchors (non-exhaustive)

- Romanian Government Emergency Ordinance No. 34/2014 on consumer rights in contracts concluded with professionals.
- Directive 2011/83/EU on consumer rights.
- Directive (EU) 2019/771 on certain aspects concerning contracts for the sale of goods.
- Applicable Romanian civil, e-commerce, food, tax and consumer-protection legislation, as amended.